

VCU331697 Hillsdale Garden Homes vs. Miller, Anthony P.

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-04

Motion: Defendants' Counsel's Motion to be Relieved as Counsel as to (1) Defendant Miller and (2) Defendant Mitchell

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Re: Hillsdale Garden Homes vs. Miller, Anthony P.

Case No.: VCU331697

Date: August 4, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Defendants' Counsel's Motion to be Relieved as Counsel as to (1) Defendant Miller and (2) Defendant Mitchell

Tentative Ruling: (1) and (2) To grant the motions.

Facts

On June 8, 2026, Counsel Larissa A. Branes filed motions to be relieved as counsel as to Defendants Anthony P. Miller and Rhonda L Mitchell. Counsel, as to each motion, filed the following with respect to withdrawing:

(1) MC-051 - Notice of Motion and Motion to be Relieved as Counsel;

(2) MC-052 – Declaration in Support of Attorney's Motion to Be Relieved as Counsel; and

(3) MC-053 - Order Granting Attorney's Motion to Be Relieved as Counsel

Additionally, Counsel has filed proofs of service of these documents by mail.

Authority and Analysis

Code of Civil Procedure section 284 provides that “[t]he attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; [or] 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.”

California Rule of Court 3.1362(a) requires that the “notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel-Civil (form MC-051).”

As noted above, Counsel has complied with California Rule of Court 3.1362(a) by submitting the notice and motion on MC-051 and by directing the notices and motions to all parties.

California Rule of Court 3.1362 (c) further mandates that: “The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney’s Motion to Be Relieved as Counsel--Civil (form MC-052).

The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1). Specifically, the declaration that Rule 3.1362(c) requires must state that the moving attorney attempted to secure a “Substitution of Attorney” from the client as required under Code of Civil Procedure section 284(1) and that the client refused to so stipulate.

Here, the declarations are properly made on form MC-052 and use general terms without compromising confidentiality by reference to Rule of Professional Conduct 1.16. The declarations do not explicitly mention a “Substitution of Attorney” but do note that Defendants refused to stipulate the attorneys could withdraw. Counsel’s declaration states at paragraph 2, “The client has not voluntarily consented to LS Carlson Law, PC’s request to be relieved as counsel.” The Court will accept this as sufficient evidence that the substitution was sought but not obtained.

Next, service under Rule 3.1362(d) requires personal service, electronic service, or mail and counsel’s declaration must note the service made. Here, service was by mail on June 8, 2026. The declarations of Counsel indicate that Defendants’ addresses were confirmed as current by email and return receipt requested.

Finally, Rule 3.1362(e) requires the proposed orders be lodged with the Court on MC-053 with the moving papers, specifying all hearing dates scheduled, including date of trial. Counsel has complied with this requirement.

The Court grants Defendants’ Counsel’s Motions to Withdraw as to Defendants Miller and Mitchell.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.